

# BelgoBase General Terms and Conditions B2B

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**Provider:** NovaVenture Group BV, trading as BelgoBase

**Enterprise number/VAT identification:** BE 1006.303.437

**Register of Legal Entities:** RLE Antwerp, Mechelen division

**Registered office:** Krommestraat 48, 2830 Willebroek, Belgium

**Telephone:** +32 488 13 96 64

**Contracts and privacy:** legal@belgobase.be

**Support and security:** security@belgobase.be

This version is offered for active acceptance. It does not retroactively replace an existing agreement; its applicability follows the provisions on acceptance and changes.

## Article 1 — Identity and communication

1.1. NovaVenture Group BV provides the Service under the trade name BelgoBase and is hereinafter referred to as **BelgoBase**.

1.2. Contractual questions, price arrangements, terminations and privacy requests must be addressed to legal@belgobase.be. Support questions, technical incidents and security notifications must be addressed to security@belgobase.be.

1.3. The Customer shall use the business address linked to its customer or Licence record for contractual communications and shall report any change without undue delay.

1.4. A Party may request reasonable identification or authority information where the origin, identity or representative authority of a communication is objectively doubtful.

## Article 2 — Business-only scope

2.1. These terms apply exclusively to an undertaking, legal entity, public authority, association, self-employed person or other person acting for professional purposes, hereinafter the **Customer**.

2.2. The Service is not intended for consumers. Anyone acting wholly or mainly outside their professional activity may not complete the business acceptance flow and must contact BelgoBase in advance.

2.3. The natural person acting on behalf of the Customer separately confirms that they:

- a. identify the correct legal Customer;
- b. are acting professionally;
- c. are authorised to bind the Customer or have the required internal approval; and
- d. were able to open, read, download and retain the applicable documents before acceptance.

2.4. A technical confirmation of authority is rebuttable evidence of the action taken. It does not make a lack of authority incontestably valid and does not prevent BelgoBase from requesting proportionate additional verification.

2.5. The Licence has no separate contractual territorial boundary. This does not guarantee worldwide availability and does not change applicable rules on privacy, source rights, sanctions, export controls, embargoes, security or international transfers.

2.6. BelgoBase is an information and support tool. It does not provide exclusive or decisive legal, tax, accounting, credit, investment, sanctions, fraud, solvency or compliance advice and does not make decisions on behalf of the Customer.

## Article 3 — Definitions

In these terms:

- **Acceptance Record:** the limited electronic record of the Acceptor's active declarations, linked to the relevant customer, user, Licence, Device, software and document data.
- **Acceptor:** the natural person who declares that they are authorised to bind the Customer and actively accepts the applicable Contract Documents on the Customer's behalf.
- **Business Information:** undertaking data, documents, selections, financial fields, indicators and derived results offered through the Service.
- **Paid Continuation:** use for which an authorised Acceptor has given prior Written agreement to at least the price, start date and invoicing terms.
- **Source Restriction:** any statutory, contractual, technical or data-protection restriction applicable to Source Information or its further processing.
- **Source Holder:** a public authority, institution, supplier or other party from which data or documents originate directly or indirectly.
- **Source Information:** data or documents obtained by BelgoBase from an external official or commercial source and made available in the Service in accordance with the Source and Use Schedule.
- **Contract Documents:** the individual order or price arrangement, applicable special annexes including the Source and Use Schedule, these General Terms and Conditions and the Terms of Use.
- **Service:** the BelgoBase software, database features, Licence and account features, updates, documentation and support actually available.
- **Export:** a file or result generated by the User through a visible, permitted export feature.
- **Exportable Customer Data:** solely to the extent that Chapter VI of Regulation (EU) 2023/2854 applies to the Service, the input, output and metadata that are legally exportable and generated by or jointly through the Customer's use. The rights of BelgoBase, Source Holders and third parties remain reserved, without any exception being used to prevent a mandatory switching right.
- **User:** the natural person registered to the Licence who actually uses the Service. The Acceptor and the User may be the same person but remain separate roles.
- **Terms of Use:** the separately and actively accepted document governing permitted and prohibited product use.
- **Free Use Phase:** use for which no fee has been agreed.
- **Information Package:** the Contract Documents, the applicable privacy and cookie information, and the version and receipt evidence. The privacy and cookie information does not constitute contractual consent or a ranking provision.
- **Customer:** the undertaking acquiring the Service and contracting with NovaVenture Group BV.
- **Customer Data:** data provided by the Customer to BelgoBase for contract, Licence, support or product use; this term does not grant the Customer ownership of Source Information or BelgoBase technology.
- **Licence:** the limited, non-exclusive, non-transferable and non-sublicensable right of use under this agreement.
- **Normal Use:** interactive use through the visible features, within the contractual and technical limits, without circumvention or unauthorised automation.
- **Party or Parties:** BelgoBase or the Customer separately, or both jointly.
- **Written:** an email capable of durable retention, a signed document or an express electronic declaration in an environment provided for that purpose.
- **Device:** the single supported computer or end-user installation registered to the Licence.

## Article 4 — Contract documents and order of precedence

4.1. The Contract Documents consist, in descending order of precedence, of:

1. an individual agreement or deviation expressly accepted by both Parties;
2. a separately accepted price proposal, solely for the commercial matters governed by it;
3. an applicable and separately activated special annex, for the subject governed by it;
4. these General Terms and Conditions;
5. the Terms of Use;

6. product, support and security instructions that do not constitute a material contractual amendment.

4.2. The Privacy Notice and Cookie Notice form part of the Information Package but not of the Contract Documents or their order of precedence. They provide information, do not constitute general consent or a payment commitment, and do not tacitly expand the purposes of processing.

4.3. A data processing agreement applies only to specifically described processing for which the actual roles require it. It amends the remainder of the contractual relationship only for that processing.

4.4. Mandatory statutory switching, data portability, deletion or information obligations continue to apply where the Service falls within their scope.

4.5. The Customer's general or purchasing terms amend this agreement only where BelgoBase expressly and specifically accepts them in Writing. A purchase order number, access, invoice processing or support does not by itself constitute specific acceptance.

4.6. A brochure, website description, demonstration, plan or future feature is not a delivery commitment unless expressly accepted as a binding individual arrangement.

## **Article 5 — Formation and electronic acceptance**

5.1. The standard agreement is formed only after:

- a. an authorised Acceptor actively accepts these General Terms and Conditions;
- b. the Acceptor separately and actively accepts the Terms of Use;
- c. the Acceptor separately declares that they are authorised to bind the identified Customer;
- d. the Acceptor separately confirms that the applicable privacy information was available before registration, without that confirmation constituting consent or contractual acceptance of the Privacy Notice; and
- e. BelgoBase has confirmed the complete registration and made the Licence available.

5.2. All choices are off by default. Installation, the passage of time, silence, continued use, an update, closing a window or a failed connection does not constitute acceptance.

5.3. Before acceptance, the Acceptor receives:

- a. the full text of each document;
- b. the document ID, title, version and SHA-256 hash;
- c. a means of retaining and reproducing each document durably;
- d. visibility of the technical steps; and
- e. a means of checking and correcting Customer, Acceptor, User and input errors.

5.4. The Acceptance Record distinguishes at least the Customer, the Acceptor and their declaration of authority, the named User, the Licence and the Device. It links those roles to the exact declarations, document IDs, titles, versions and hashes, the relevant software context, the UTC time and the receipt ID.

5.5. An incomplete or unconfirmed registration does not activate the Service. The technical integrity and error conditions are set out in the applicable acceptance specification and do not restrict the right to provide evidence to the contrary.

5.6. Following successful registration, the Customer receives a receipt capable of durable retention or an equivalent download option. The receipt states the applicable document versions and hashes, but no password, secret key or unnecessary full product content.

5.7. The Acceptance Record and receipt are rebuttable evidence. They do not exclude evidence to the contrary concerning identity, authority, content, integrity or technical errors and do not qualify as a qualified electronic signature merely by contractual wording.

5.8. A separately signed agreement may replace the standard flow only where it expressly so provides. Technical access remains subject to valid Licence and security requirements.

## **Article 6 — Description and professional limitation of the Service**

6.1. BelgoBase supports the searching, filtering, selection, analysis and normal export of Business Information for internal business analysis and lawful professional activities.

6.2. Only features actually available in the supported version being used form part of the Service. A roadmap or non-activated feature creates no delivery obligation.

6.3. BelgoBase is subject to a best-efforts obligation and exercises reasonable professional care. It does not guarantee that every undertaking, event, source or variable is present, error-free or immediately current.

6.4. Source Information may be incomplete, historical, delayed, ambiguous or subsequently corrected. The Customer verifies information with the authentic source before making a decision with significant legal, financial, credit, sanctions, employment or reputational consequences.

6.5. Visibility or exportability does not mean that every item of data may be used for direct marketing, redistribution or any other purpose. Source references, reference dates and applicable use restrictions remain attached.

6.6. BelgoBase makes a source or feature available only to the extent and for as long as it holds the necessary rights to obtain, process, reuse and provide it. The agreement does not create a missing source right.

6.7. The Customer acquires no direct account, subscription, API right, licence, access credential or support from CBE, NBB or any other Source Holder. BelgoBase makes a source feature available only within the rights demonstrably applicable to the specific source product, fields concerned, feature and use. The Source and Use Schedule determines which display, selection, Export, retention, provision and prospecting are permitted. Technical availability does not expand those rights.

6.8. Where a Source Holder changes its data, terms, technologies or rights, BelgoBase may proportionately modify, limit or discontinue the relevant feature. A material contractual amendment follows the applicable new-acceptance procedure.

6.9. A visible built-in AI feature may help the User formulate or structure a search query or proposal. It does not replace human assessment, make a decision on behalf of the Customer or constitute any commitment as to the accuracy, completeness, availability or suitability of its output. Before use, the actual data flow, any external service provider and the privacy information must be factually and accurately described in the applicable final documents.

## **Article 7 — Free Use Phase**

7.1. Standard access starts free of charge and has no guaranteed minimum duration.

7.2. The Free Use Phase never automatically creates a price, invoice, debt, minimum purchase, automatic renewal or payment obligation.

7.3. No fee arises from the passage of time, silence, installation, an update, continued use, failure to remove software or receipt of a price proposal.

7.4. BelgoBase does not charge retroactively for use that was offered free of charge.

7.5. BelgoBase may terminate the Free Use Phase in Writing. This creates no unaccepted price or termination fee. Mandatory rights concerning data, evidence or safe exit remain reserved.

## **Article 8 — Paid Continuation**

8.1. Paid Continuation arises only after prior active Written agreement by an authorised Acceptor.

8.2. The proposal states at least:

- a. the Customer;
- b. the price and currency;
- c. the applicable VAT treatment, insofar as known;
- d. the invoicing period and frequency;
- e. the start date;
- f. the payment term;
- g. the included Licences and material scope;
- h. the applicable Contract Documents; and
- i. every specifically agreed deviation.

8.3. The price acceptance supplements the existing agreement. It does not introduce a minimum term, notice period or termination fee.

8.4. Silence, continued use, an expression of interest, a pre-ticked box or a general purchase reference does not constitute price acceptance.

8.5. A new or higher price again requires active Written agreement and never applies retroactively.

8.6. Invoicing does not begin before the agreed start date. Upon immediate termination, an unused prepaid period is credited or refunded pro rata, except for separate services already fully performed.

8.7. The price acceptance is evidenced separately in durable form and states the specific price, start date and invoicing terms.

8.8. If BelgoBase separately offers AI credit, that credit arises only after manual payment and prior active Written acceptance of the specific offer. That offer states at least the euro amount, VAT treatment, quantity or measurement method for the credit, applicable AI feature, any validity period, treatment of failed or interrupted calls, and the balance upon termination. Without such an individual offer, no payment obligation, automatic top-up, automatic renewal or hidden usage fee arises.

## **Article 9 — One named User and one Device**

9.1. The standard Licence applies to one named User on one registered Device.

9.2. The User uses access personally. Licences, activation means, sessions and Device access may not be shared.

9.3. Replacement of a User or Device is requested via [security@belgobase.be](mailto:security@belgobase.be). BelgoBase may request proportionate verification and withdraw the previous registration when the replacement is activated.

9.4. Reinstallation, a hardware change, virtual machine, shared workstation or remote session does not create an automatic right to a second registration.

9.5. An authorised IT administrator may temporarily assist with installation, maintenance or incident resolution, under the Customer's responsibility and without independent substantive use.

9.6. Additional Users or Devices require separate Written confirmation and, where applicable, a price accepted in advance.

## **Article 10 — Duration and immediate termination**

10.1. The agreement is concluded for an indefinite term.

10.2. Either Party may terminate the agreement at any time in Writing and with immediate effect, without giving reasons, a notice period or a termination fee.

10.3. The Customer terminates through [legal@belgobase.be](mailto:legal@belgobase.be) or a demonstrably provided account feature for that purpose. BelgoBase uses the Customer's registered business contact address.

10.4. Termination is effective as soon as the addressee can reasonably access it. An acknowledgement of receipt supports the evidence but is not a validity requirement where receipt is otherwise demonstrated.

10.5. Practical discussions about data, access, invoicing or security do not suspend immediate termination.

10.6. BelgoBase may immediately restrict access where reasonably necessary because of a serious security risk, suspected misuse, statutory obligation, sanctions or export rule, missing source right or material breach of contract.

10.7. Where the nature and seriousness allow, BelgoBase provides the reason and a proportionate opportunity to remedy. This is not required where advance notice would materially increase the risk or is prohibited by law.

10.8. Payment of amounts already due, evidence, confidentiality, intellectual property, liability, lawful use of existing Exports and dispute resolution continue to apply insofar as their nature so requires.

## **Article 11 — Mandatory switching, retrieval and deletion rights**

11.1. If and to the extent that Chapter VI of Regulation (EU) 2023/2854 or another mandatory regime applies to the Service, the resulting switching, retrieval, continuity, information and deletion rights remain fully reserved.

11.2. An applicable and separately activated Switching & Exit Annex determines the practical procedure, data categories, formats, transition, support, retrieval period, costs and deletion. In the event of conflict on that subject, mandatory law and then that special annex take precedence.

11.3. Immediate commercial termination remains possible. Only obligations legally necessary for security, continuity, transfer, retrieval, evidence or deletion continue for the required period.

11.4. No switching or retrieval right expands rights to personal data, Source Information, software, trade secrets, security material or third-party rights beyond what mandatory law prescribes.

## **Article 12 — Consequences of termination**

12.1. From the effective termination, the right to new access, searches, updates and Exports ends. BelgoBase may deactivate the Licence and Device registration.

12.2. The Customer removes the software and no-longer-permitted local database copies within a reasonable period, except insofar as mandatory law or a specific evidentiary or security need permits retention.

12.3. Lawfully generated Exports may be retained for the original, documented and lawful purpose for as long as the data remain necessary, sufficiently current and lawfully processed.

12.4. After termination, Exports may not be used as a replacement BelgoBase database, updated through unauthorised extraction or operated as a database service for third parties.

12.5. The Customer remains responsible for correction, objections, deletion, access security and statutory retention within its own Exports and systems.

12.6. BelgoBase retains contract, Licence, security and evidentiary data only for as long as justified by a legal basis, purpose or statutory obligation, as further described in the Privacy Notice.

12.7. Termination confers no right to source code, internal models, underlying database structures, source accounts or Source Holder rights, unless a mandatory right expressly provides otherwise.

## **Article 13 — Obligations and lawful use**

13.1. The Customer:

- a. provides accurate customer, contact, User and Device data;
- b. restricts access to authorised persons;
- c. secures the Device, mailbox, access means and Exports;
- d. uses the Service in accordance with the Contract Documents and applicable law;
- e. verifies critical information with the authentic source;
- f. reports loss, compromise, suspected misuse and relevant errors without undue delay; and
- g. cooperates proportionately with a necessary security or misuse investigation.

13.2. The Customer independently determines whether its selection, prospecting, communication, legal basis, objection handling and further decision-making are lawful.

13.3. Source or personal data subject to a direct-marketing prohibition or other purpose limitation may not be repurposed under a general prospecting purpose.

13.4. The Customer does not use the Service as the sole or decisive means for a decision producing legal effects or similarly significant effects on a natural person.

13.5. The Customer does not send passwords, secret keys, complete sensitive Exports or unnecessary personal data by ordinary email.

13.6. The Customer is responsible for the User's acts and for access it grants contrary to the agreement, without prejudice to its right to demonstrate force majeure or an absence of attributable fault.

13.7. Detailed prohibitions, including account sharing, automated extraction, circumvention, malicious code and database reconstruction, are set out in the separately accepted Terms of Use.

## **Article 14 — Exports and Customer responsibility**

14.1. Through the visible product feature, the Customer may make normal Exports for its own internal business analysis and lawful professional purposes.

14.2. An Export grants no broader source, privacy, copyright, database or reuse right than actually applies to the information concerned.

14.3. In principle, the Customer becomes an independent controller for its selection, local storage, enrichment, communication, further distribution and decision-making.

14.4. The Customer secures local Export files appropriately for their content and risk. BelgoBase does not guarantee encryption of files stored locally by the Customer itself.

14.5. Visible export limits, quantities and rate limits form part of Normal Use. Splitting, account combination or automation to circumvent those limits is prohibited.

14.6. Statutory data portability or switching is governed exclusively by Article 11 and must not be confused with normal product export.

## **Article 15 — Sources, source rights and data currency**

15.1. Business Information may originate from official registers, public publications, contractual services and BelgoBase's own lawful structuring or derivation.

15.2. BelgoBase claims no exclusive right to facts or official data that do not qualify for protection.

15.3. Protected selection, checking, structuring, enrichment, presentation and database investments of BelgoBase or its licensors remain reserved insofar as the statutory conditions for protection are met.

15.4. The Customer does not remove any source reference, reference date, warning or use restriction necessary for correct understanding or lawful use.

15.5. BelgoBase does not present itself as the authentic CBE, NBB or other government source. The Customer shall not do so either.

15.6. No source, field or export is commercially activated without sufficient evidence that BelgoBase may obtain, process, present and provide that information to customers.

15.7. A change in or loss of source rights may justify immediate restriction or discontinuation without creating an unaccepted replacement service or damages guarantee.

## **Article 16 — Data-protection roles**

16.1. BelgoBase is an independent controller where it determines the purposes and essential means for, among other things, contract, Licence, Device, product, source, security, support and evidentiary processing.

16.2. In principle, the Customer is an independent controller for its selection, Export, storage, enrichment, prospecting, contact and further decision-making.

16.3. This agreement does not automatically make BelgoBase the Customer's processor and does not automatically make the Parties joint controllers.

16.4. Where a specific feature entails BelgoBase processing exclusively under documented Customer instructions, the Parties conclude an appropriate data processing agreement before activation.

16.5. Where the Parties actually determine purposes and essential means jointly, an appropriate joint-controller arrangement is established before that processing.

16.6. CBE, NBB and other Source Holders are not presented as BelgoBase processors without a factual and legal basis.

16.7. Each Party remains responsible for its own legal bases, transparency, handling of rights, security, retention periods and international transfers.

16.8. The Privacy Notice describes processing by BelgoBase and does not constitute universal consent for processing by BelgoBase or the Customer.

## **Article 17 — Confidentiality**

17.1. Each Party protects the other Party's non-public information with reasonable care and uses it solely for the agreement.

17.2. The obligation does not apply to information demonstrably already lawfully known, independently developed, lawfully received from a third party or made public without breach of contract.

17.3. Mandatory disclosure under law or a binding order remains permitted. The receiving Party informs the other in advance insofar as legally possible and limits disclosure to what is necessary.

17.4. Sharing with employees and professional advisers is permitted where they reasonably need the information and are subject to appropriate confidentiality.

17.5. Personal data and security information are additionally subject to their own statutory and contractual protection rules.

## **Article 18 — Intellectual property and database rights**

18.1. Software, source code, interface, documentation, trade marks, proprietary texts, selection structures, models and protected database elements remain the property of BelgoBase or its licensors.

18.2. The Licence transfers no ownership right and permits no sale, rental, sublicensing, disclosure or commercial derivative service.

18.3. Systematic retrieval, copying or combination of results to reconstruct the whole database or a substantial part of it is prohibited.

18.4. Repeated extraction of individually limited parts is also prohibited where it conflicts with Normal Use or prejudices the normal exploitation of a protected database.

18.5. Mandatory statutory rights for necessary use, backup, observation, study, testing or interoperability remain reserved subject to their statutory conditions.

18.6. Where reasonable, the Customer first requests necessary interoperability information from BelgoBase.

18.7. BelgoBase may use voluntary feedback free of charge for improvement, without disclosing confidential information or taking over the Customer's pre-existing rights.

## **Article 19 — Support, maintenance and updates**

19.1. Support and security notifications are handled through [security@belgobase.be](mailto:security@belgobase.be). An urgent security notification must clearly state SECURITY.

19.2. Unless separately agreed in Writing, no guaranteed opening, response, remediation or resolution time and no Service Level Agreement applies.

19.3. BelgoBase handles notifications using reasonable efforts, according to severity, risk and available resources.

19.4. BelgoBase may issue security updates, bug fixes, compatibility changes and source updates.

19.5. The Customer installs a mandatory security or compatibility update within the reasonable period communicated.

19.6. BelgoBase may proportionately block a demonstrably unsafe, corrupt or incompatible version.

19.7. Software, installer, build and update numbers are separate from legal document versions but are linked to them in the Acceptance Record.

## **Article 20 — Availability and maintenance**

20.1. BelgoBase provides the Service under a best-efforts obligation and does not guarantee permanent, error-free or universal availability.

20.2. Availability may be affected by the internet, the Device, hosting, maintenance, security, Source Holders and circumstances beyond BelgoBase's reasonable control.

20.3. Planned maintenance is announced in advance where reasonable. Urgent security, recovery or compliance work may take place without prior notice.

20.4. Specific availability, response-time, recovery or security guarantees apply only where expressly included in the individual order or an applicable special annex.

20.5. A material, lasting restriction of the core feature follows Article 28. The Customer's right to immediate termination always remains available.

## **Article 21 — Security, controls and suspension**

21.1. BelgoBase uses appropriate technical and organisational measures proportionate to the nature, state of the art, costs and risk of the proven processing.

21.2. Reasonable Licence, integrity, quota, audit and misuse controls are permitted for security and service provision.

21.3. Controls are not intended to routinely collect passwords, complete search content or complete Exports.

21.4. A session, Device or Licence may be temporarily blocked upon reasonable suspicion of account sharing, automated extraction, integrity manipulation, malicious code or unauthorised access.

21.5. The Customer may have a block investigated through [security@belgobase.be](mailto:security@belgobase.be). Access is restored when the reason has been removed and the agreement remains in effect.

## **Article 22 — Service providers and transfers**

22.1. BelgoBase may use carefully selected service providers for necessary hosting, communications, security, support, accounting and distribution.

22.2. BelgoBase remains responsible for its own contractual obligations and concludes appropriate processor and transfer arrangements where required.

22.3. In the Privacy Notice, BelgoBase provides the legally required information about recipients or categories of recipients and applicable international transfers.

22.4. These terms contain no guarantee that all processing takes place exclusively within the European Economic Area. Any transfer of personal data to a third country is subject to Chapter V GDPR and the applicable transparency obligations.

22.5. No real customer or production data is entrusted to a new service provider before its role, data scope, contract, security and any transfer have been appropriately assessed.

## **Article 23 — Invoicing and payment**

23.1. Only a fee accepted in accordance with Article 8 may be invoiced.

23.2. Invoices follow the agreed price, period, start date, tax treatment and payment term.

23.3. No automatic direct debit, card charge or other automatic collection takes place without a separate valid mandate.

23.4. The Customer reports a specific invoice dispute without undue delay. Late reporting does not automatically preclude a substantively justified dispute.

23.5. The undisputed part remains payable. BelgoBase investigates the disputed part and corrects a proven error.

23.6. In the event of late payment, only the statutory consequences or expressly accepted proportionate terms apply. No unaccepted flat-rate charge is added.

23.7. Termination preserves only amounts due up to the effective termination date, subject to the pro-rata arrangement in Article 8.6.

## **Article 24 — Representations and limited warranties**

24.1. BelgoBase exercises reasonable professional care and endeavours to provide the Service in material accordance with the current documentation.

24.2. BelgoBase does not guarantee that the Service is suitable for every particular purpose, that every source remains available or that every item of data is complete and current.

24.3. The Customer independently chooses search criteria, interpretation, communication and decisions.

24.4. No provision excludes liability for BelgoBase's own attributable fault within Article 25.

## **Article 25 — Liability**

25.1. Each Party is liable for loss directly caused by its attributable contractual or non-contractual fault.

25.2. Subject to Article 25.6, BelgoBase is liable only for proven, reasonably foreseeable direct loss.

25.3. BelgoBase's total aggregate liability for the same or a connected set of facts is limited to the higher of:

- a. EUR 5,000; or
- b. the net fees actually paid by the Customer during the twelve months preceding the first loss-causing event.

25.4. To the extent permitted by law, this cap applies jointly to contractual and non-contractual claims. It is not multiplied by the number of faults, legal bases, Users or injured parties arising from the same set of facts.

25.5. Subject to Article 25.6, BelgoBase is not liable for indirect loss, loss of profit or revenue, missed savings or opportunities, loss of goodwill, or loss caused by a decision taken without the required source verification. Reasonable necessary mitigation costs are not excluded solely by being labelled indirect.

25.6. No exclusion or cap applies to:

- a. fraud or intentional fault by BelgoBase or a person for whom it is responsible;
- b. gross fault by BelgoBase or a person for whom it is responsible;
- c. a fault committed with intent to cause loss;
- d. death or impairment of physical or psychological integrity;
- e. non-performance of an essential obligation where the limitation deprives the agreement of its substance; or
- f. liability or rights that mandatory law does not permit to be limited, including the mandatory rights of data subjects under Article 82 GDPR.

25.7. To the extent permitted by law, employees, directors, contractors and other auxiliary persons may invoke the same contractual defences and limitations. The exceptions in Article 25.6 remain fully applicable.

25.8. The Customer mitigates foreseeable loss and reports a loss event without undue delay. Delay reduces rights only in respect of demonstrable additional loss or evidentiary prejudice.

25.9. Free use does not reduce the cap below EUR 5,000. Higher individual cover may be agreed only expressly and in Writing.

## **Article 26 — Third-party claims arising from Customer use**

26.1. The Customer is responsible for specific claims arising directly from its demonstrably unlawful prospecting, distribution, account sharing, database reconstruction or other breach of the Contract Documents.

26.2. BelgoBase informs the Customer without undue delay, allows it reasonable participation in the defence and imposes no non-monetary obligation on it without its prior agreement.

26.3. The obligation does not apply to the extent that the claim was caused by BelgoBase's own fault or by unlawful material whose use BelgoBase required.

26.4. Only reasonable, necessary and demonstrable costs are recoverable. This Article creates no unlimited flat-rate indemnity.

26.5. This Article creates no strict liability and confers no right to double recovery. The Customer's obligation is reduced proportionately to the extent that BelgoBase's own fault contributed to the claim or loss.

## **Article 27 — Force majeure**

27.1. A Party is not liable for non-performance resulting directly from an unforeseeable and unavoidable event beyond its reasonable control that makes performance genuinely impossible.

27.2. The affected Party reports the cause and consequences as soon as reasonably possible and mitigates the consequences.

27.3. Inability to pay, insufficient resources or a foreseeable capacity shortage does not in itself constitute force majeure.

27.4. Each Party's right to immediate termination remains available. The pro-rata arrangement applies to undelivered prepaid periods.

## **Article 28 — Changes to price, terms and Service**

28.1. A new or higher price always requires separate active Written agreement.

28.2. A change is material where it introduces, among other things, a new payment, broader use of personal data, a materially heavier Customer obligation, lower liability protection, a more limited Licence or a different permitted principal purpose.

28.3. A material change is made durably available in advance and requires new active acceptance. Silence or mere continued use is insufficient.

28.4. Language corrections, clarifications and non-material technical or security adjustments may be made without new acceptance, but receive a traceable version and hash where document bytes change.

28.5. The Customer may reject a material change and terminate immediately without charge. Without the required acceptance, BelgoBase may discontinue access to the changed Service.

28.6. An urgent technical measure to protect the law, source rights or security is not automatically a contractual change. If the contractual position is materially changed, this Article nevertheless applies.

28.7. No change has retroactive effect.

## **Article 29 — Electronic records, corrections and evidence**

29.1. BelgoBase may retain limited records relating to the Customer, User, Licence, Device, software context, document versions, hashes, time, declarations and result.

29.2. Support records are limited to necessary identification, version, feature, error and correlation data. Passwords, secret keys, complete searches and complete Exports are not normal support records.

29.3. Records serve contract evidence, Licence management, security, troubleshooting, support and legal claims in accordance with the Privacy Notice.

29.4. Electronic records, receipts and emails are admissible evidence under applicable law, but are not conclusive or the only admissible evidence.

29.5. A correction does not overwrite a historical Acceptance Record. It is added as a new, linked record with the reason, time and responsible actor.

29.6. A hash mismatch means that the same document bytes have not been proven. The changed text cannot be placed under the old acceptance.

29.7. The Customer must be able to obtain its accepted documents and receipt durably through a proven product feature or upon reasonable request.

## **Article 30 — Assignment and succession**

30.1. The Customer may not assign the agreement, Licence or access without prior Written agreement.

30.2. BelgoBase may assign the agreement upon reorganisation, succession or transfer of the BelgoBase business where the new party assumes the relevant obligations.

30.3. The Customer is informed in advance or without undue delay.

30.4. Assignment does not tacitly bind the Customer to a new price or materially less favourable Contract Documents.

## **Article 31 — Notices**

31.1. Contractual notices are in Writing and sufficiently identify the sender, Customer and subject.

31.2. Termination, price acceptance and material changes use the agreed business addresses or an account environment capable of durable retention.

31.3. A transient in-software notification does not replace Written notice where it cannot be retained durably.

31.4. An email is deemed received when it is accessible in the designated mailbox, subject to an error message or evidence to the contrary.

31.5. Operational security notifications may be supplemented through the fastest appropriate channel, but a contractual change always follows the prescribed procedure.

## Article 32 — Governing law and disputes

32.1. The agreement is governed by Belgian law.

32.2. This choice of law does not exclude any directly applicable or mandatory Belgian, European or other law from which the applicable conflict-of-law rules do not permit contractual derogation.

32.3. The Parties first attempt to clarify a dispute through legal@belgobase.be and conduct reasonable discussions.

32.4. Those discussions do not prevent a timely protective, urgent or interim measure.

32.5. Disputes fall within the jurisdiction of the Belgian court having jurisdiction under Belgian and applicable European procedural law, subject to a court of mandatory jurisdiction or a subsequent express valid choice-of-court agreement.

32.6. These terms impose no mandatory arbitration or waiver of remedies.

## Article 33 — Final provisions and document hierarchy

33.1. The document hierarchy in Article 4 applies to the entire agreement. A support message, technical instruction, invoice wording or interface element cannot tacitly amend a higher-ranking document.

33.2. If a provision is wholly or partly invalid or unenforceable, the remaining provisions continue to apply. The provision concerned is adjusted only to the extent necessary to preserve its balanced and lawful purpose as closely as possible.

33.3. Failure to exercise a right immediately is not a waiver. A waiver is valid only where it is Written and specific.

33.4. The agreement creates no partnership, employment relationship, exclusivity, agency or general representative authority.

33.5. Headings and summaries are for readability. In the event of any discrepancy, the full article-by-article text prevails.

33.6. The Dutch-language version is binding. A translation is for assistance only, unless the Parties expressly agree otherwise.

33.7. An individual deviation amends only the subjects it expressly governs. The other Contract Documents continue to apply.

## Article 34 — Version, hash, acceptance and continuing accessibility

34.1. This text is **BelgoBase General Terms and Conditions B2B version 1.2**, with document ID BB-AV-B2B-EN-1.2 and contract-set ID belgobase-b2b-commercial-1.2.

34.2. The applicable manifest and receipt identify the exact document bytes offered and accepted by their SHA-256 hash. A hash proves byte identity but does not by itself prove authority, understanding or valid expression of intent.

34.3. Every substantive change after the document bytes have been fixed receives a new version and hash. Historical bytes are not replaced under the same version number.

34.4. Software, installer, build and update numbers remain separate identifiers. The Acceptance Record links the actual software context to the exact document versions accepted.

34.5. These terms apply to a Customer only from active acceptance of the applicable version and have no retroactive effect.

34.6. Materially amended terms require new active acceptance in accordance with Article 28.

34.7. BelgoBase retains the historically accepted document bytes and makes them durably available throughout the agreement and for a reasonable evidentiary period, subject to a longer statutory retention obligation.